Alabama Rules of Criminal Procedure

Rule 25. Procedure after verdict or finding of not guilty by reason of mental disease or defect.

Rule 25.3. Hearing.

Whenever the court finds probable cause pursuant to Rule 25.2(b), the court shall hold a hearing within seven (7) days of the order issued pursuant thereto to determine whether the defendant shall be involuntarily committed. For good cause shown, the court may continue the hearing to a later date not to exceed thirty (30) days from the determination of the finding of probable cause.

Committee Comments

Rule 25.3 includes the provisions of Ala.Code 1975, § 15-16-42. It provides for a hearing within seven (7) days to determine whether the defendant should be committed after the finding of probable cause under Rule 25.2(b). Provision is made for a continuation of the hearing to a later date not to exceed thirty (30) days from the finding of probable cause.